TEMPLATE P38 · RULES OF PROCEDURE OF THE AI GOVERNANCE BODIES

Rules of procedure of the AI governance bodies

Approvable text, article by article, of the AI Committee's rules of procedure, with annexes for the AI Office and the board committee and a model appointment of the head of AI.

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Why it matters. The model mandates in document 30 say what each body does, but they are not enough for a body to work: it must be clear who convenes, when there is a quorum, how votes are cast, who abstains and where each resolution is recorded. Without approved rules of procedure, *gate* decisions, risk acceptances and exceptions can be challenged for lack of competence or form, and D1 maturity cannot exceed level 2 because the evidence of a written mandate is missing (11, D1.03 and D1.07).

01

Instructions for use

Aspect	Guidance
When it is used	In the first implementation, in month 3 (week 9, 90 §4.4), and whenever the governance structure or the delegation matrix is changed. It is reviewed in C5.
Who completes it	The AI Office drafts it, with the board secretariat and legal counsel.
Who verifies it	The second line (competences on risk, clearances and exceptions) and legal counsel (fit with the articles of association, the board's rules of procedure and applicable company law).
Who decides or approves	The AI Committee's rules and the AI Office mandate: senior management or the board, according to the company's delegation system. The board committee's AI competences and the appointment of the head of AI: the board.
Corporate cycle stage	C2 (approval together with the delegation matrix, 30 §7) and C5 (annual review).
Tool	T01 · Use case register: registration of bodies and people to validate decision-maker and verifier (30 §10, step 5).
Reference document	30 §3, §4, §6, §7, §12; 01 §8.3; 11 D1.01–D1.03 and D1.07; 90 §4.4.
Lite versus Enterprise	In a company with Lite scope or of small size, the AI Committee may be the management committee with its own monthly item and the AI Office one part-time person (30 §11). The three non-negotiable safeguards of 30 §11 apply in both cases.

Completion rules:

- The company's data go **in square brackets** ☐ and are replaced by the approved text; on approval, no brackets remain.
- Quorum and time limits are **for reference** (30 §3). The company may tighten them; it may not lower the decision levels of 01 or of the common specification §5.1.
- If an existing committee takes on the functions of the AI Committee (30 §10), this text is incorporated as a chapter of its rules and no new body is created.
- Anything the rules do not assign to another body falls to the AI Committee, which may escalate it (30 §7).

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Identification

Field	Content	Guidance
Company		[Company name].
Perimeter		Companies and areas to which it applies.
Version of the rules		1.0 on approval.
Approving body and date		Minutes reference (P39).
Replaces		Previous version or rules of the existing committee being amended.
Next review		C5 stage of financial year [AAAA].
Documents it develops		Corporate AI policy (document 31) and the delegation matrix approved in C2.

03

Assignment of functions to existing bodies

Before drafting, each function in 30 §3 and §7 is assigned to one body, with no gaps or overlaps (30 §10, steps 1 and 2).

SEVEN-G function	Body that takes it on	Already exists? (Yes · No)	Rules amended
AI Committee			
AI Office			
Board committee for AI			
Second-line coordination for AI			
Head of AI audit			
***(illustrative example)* AI Committee**	Digital transformation committee with an extended mandate	Yes	Rules of the transformation committee, new chapter IV

04

Rules of procedure of the AI Committee

Article 1. Purpose. These rules govern the composition, competences and functioning of the AI Committee of [the Company], the body that manages the artificial intelligence portfolio within the AI thesis, the ambition per sphere and the risk appetite approved by the Board of Directors, and decides what the Board delegates to it.

Article 2. Nature and scope. The Committee is a body [of senior management / of the existing committee that takes on the function]. Its scope covers AI use cases, third-party AI integrated into processes, corporate use of general-purpose AI and unauthorised use, within the perimeter of [perimeter].

Article 3. Composition.

1. Voting members are: [position] and [position] from senior business management (at least two areas), [position] from technology, [position] from data and [position] from people.
2. Members with a voice and clearance, without a vote on the business decision, are: [risk], [compliance], [information security] and [data protection officer]. Their clearance is required within their remit.
3. Permanent guests are: the head of the AI Office, who acts as non-voting secretary, and [internal audit] as an observer.
4. Each member designates a deputy from the same remit, notified in writing to the secretariat.

Article 4. Chair. The Committee is chaired by [position], a member of senior management with authority over the portfolio. It should not be chaired by whoever sponsors most of the portfolio. In their absence, [deputy] stands in. The chair holds a casting vote.

Article 5. Secretariat. The secretary convenes on the chair's instructions, prepares the documentation, takes the minutes, records *gate* decisions in T03 with P29, keeps the conflict and exception registers and follows up resolutions.

Article 6. Competences. In accordance with the delegation matrix of [the Company] (document 30 §7), the Committee is responsible for:

Matter	Committee competence	Reference
Diagnosis and portfolio	Approve the C1 diagnosis and the prioritised C3 portfolio.	30 §3.3; 30 §6.3
Gates	Decide G0, G2, G3, G4, G5, R6 and G7 at Enterprise intensity; be informed of Enterprise G1; decide Lite *gates* escalated after two iterations.	30 §7.1

Matter	Committee competence	Reference
Risk	Accept High residual risks with second-line clearance; review concentration; escalate Critical risks.	30 §7.2
Suspensions and retirements	Ratify immediate suspensions within 2 working days; decide planned Enterprise retirements and forced retirements; authorise resumptions with second-line clearance.	30 §7.3
Exceptions	Approve lifecycle requirement exceptions; propose corporate threshold exceptions to the board.	30 §7.4
Other	Authorise corporate tools that meet an Enterprise criterion; raise autonomy to A2 or A3; contract N3 suppliers; close critical nonconformities after verification by the AI Auditor; approve the acceptable use policy.	30 §7.5
Monitoring	Review stalled use cases, expired conditions, value and cost deviations, incidents and nonconformities.	14 §7–8

Article 7. Limits and escalation. The Committee does not approve the AI thesis, the risk appetite, the corporate policy, Transform use cases at G2 or their scaling at G7, nor does it accept Critical residual risks. It escalates to the Board or to [the Board Committee] anything that exceeds its delegation and, in any event, the situations in 30 §8.2 that require it. No practice prohibited by Article 5 of Regulation (EU) 2024/1689 is acceptable to any body.

Article 8. Notice of meetings. The secretariat convenes ordinary meetings at least [five] working days in advance, with the agenda and documentation (P39). Extraordinary meetings, for urgent *gates* or S1 incidents, may be convened with [24 hours'] notice by any means that leaves a record.

Article 9. Quorum. The Committee is validly constituted with a majority of voting members, including the chair or their deputy, and at least one representative of the second line. Without the second line present, G3, G5, risk acceptances and exceptions are not decided. Anyone who must abstain on an item does not count towards the quorum for that item.

Article 10. Deliberation and resolutions. Resolutions are adopted by consensus; failing that, by a majority of votes present, with the chair holding a casting vote. If the second line withholds its clearance on G3, G5, a risk acceptance or an exception, the Committee may not decide Proceed or Proceed with conditions: it may decide Iterate, Pivot or Stop, or escalate the disagreement to [the Board Committee] (30 §8.3).

Article 11. Written decisions. *Gates* without debate may be decided in writing, under the same rules on quorum, clearance and abstention. Any voting member may ask for the matter to be dealt with in a meeting.

Article 12. Conflicts of interest and abstention. Members declare their conflicts on joining and every year (P41), and at the start of each meeting in respect of the agenda items. Anyone with a sponsorship or build role in a use case abstains from its decisions (30, I-6). Whoever verifies a *gate* does not take

part in its decision (I-7). Whoever proposes an exception does not approve it (I-9). Abstentions are recorded in the minutes and in T01.

Article 13. Minutes and records. Minutes are taken of each meeting with attendees, quorum, conflicts, a summary of deliberations and numbered resolutions (P39). The minutes are approved at the same meeting or the next. Each *gate* decision is recorded in T03 with P29; each exception, in the P40 register.

Article 14. Frequency. The Committee meets monthly according to the annual calendar it approves at its first meeting of the financial year, and in extraordinary session when urgent *gates* or S1 incidents so require.

Article 15. Reporting to the Board. The Committee reports quarterly to [the Board Committee] on High and Critical risks, incidents, nonconformities, exceptions in force and escalated matters, and to the Board in the quarterly pack (document 60).

Article 16. Annual evaluation. The Committee evaluates its effectiveness once a year, in C5, and approves an improvement plan with owners and deadlines (11, D1.12).

Article 17. Confidentiality. Members and guests keep the deliberations and the information received confidential.

Article 18. Amendment and entry into force. These rules are amended on a proposal from the chair or the AI Office, with a report from the second line, and enter into force on [date].

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Annex A · Mandate of the AI Office

A.1 Purpose. The AI Office makes the framework work: methodology, inventory, reliable information and support for teams. If there is a risk of confusion with the European AI Office , it is called [Corporate AI Office / AI Centre of Excellence] (30 §1.2).

A.2 Functions. Maintain the inventory (T02) and the use case register (T01); safeguard the methodology, templates and checklists; verify Lite *gates* in which it has not participated; consolidate measurement with management control; prepare information for the bodies; coordinate literacy and the regularisation of unauthorised use; lead C1 and C5; approve minor methodological and use policy exceptions (30 §7.4).

A.3 Composition and reporting line. Head of the Office, [position title], and [number] people for methodology, portfolio and measurement. It reports to [the chair of the AI Committee / a position that is not a regular sponsor].

A.4 Limit. The Office does not verify use cases in whose design, build or operation it has participated (I-8); in that case, verification passes to the second line or the AI Auditor.

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Annex B · AI competences of the board committee

Text to be incorporated into the rules of [the Audit / Risk / Technology Committee]. If there is no committee, the functions are exercised by the Board (30 §3.2).

B.1 Competences. In AI matters, [the Committee] is responsible for: (a) approving the annual AI audit plan and receiving its results; (b) receiving information on S1 incidents within 24 hours and on major and critical nonconformities; (c) resolving disagreements between the AI Committee and the second line; (d) deciding, by express delegation of the Board, on the exceptional acceptance of Critical residual risks within the approved appetite; (e) monitoring the independence of the AI auditors; (f) receiving each quarter the exceptions in force and the second-line report (P42); (g) approving corporate threshold exceptions when the Board delegates this to it.

B.2 Functioning. A quarterly meeting with an AI item and an extraordinary meeting in the event of an S1 incident or a critical nonconformity if the chair so decides. The head of the AI Office, [the chief risk or compliance officer] and [the head of internal audit] attend without a vote.

B.3 Model agenda. High and Critical risks and concentrations · regulatory compliance and regulatory changes · incidents and major and critical nonconformities · audits and follow-up of findings · escalated matters · exceptions for the quarter (30 §3.2).

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Annex C · Model appointment of the head of AI

Evidence for D1.01 (document 11): a member of senior management with responsibility for the company's AI assigned in writing.

> **Appointment resolution.** [The Board of Directors / The Chief Executive Officer] of [the Company], at its meeting of [date], resolves to appoint [full name], [position], as **head of AI of [the Company]**, with the following responsibilities: (1) to answer to [the Board / the Chief Executive Officer] for the application of the approved AI thesis, ambition per sphere and risk appetite; (2) [to chair the AI Committee / to propose its chair]; (3) to ensure that the AI Office has the resources to fulfil its mandate; (4) to present to the Board the quarterly pack and the C2 and C5 packs; (5) to promote segregation of duties and the independence of the second and third lines. The appointment does not confer the verification of *gates* or the acceptance of risks above the delegation matrix. Term: [indefinite / until date]. It is communicated to the organisation on [date].

Field	Content	Guidance
Person appointed and position		Member of senior management.
Appointing body and minutes reference		
Does the person sponsor most of the portfolio?		Yes · No. If Yes, they should not chair the AI Committee (30 §3.3).
Acceptance by the appointee		Date and signature.
Communication to the organisation		Date and channel.
***(illustrative example)* Person appointed**	Chief operating officer	Appointed by the board on 15-10-2026.

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Register of members and appointments

Body	Person	Position	Capacity	Deputy	Date joined	Conflict declaration (P41)	Date left
			Voting · Voice and clearance · Guest · Secretary · Observer			Reference and date	
***(illustrative example)* AI Committee**	Person D	Chief risk officer	Voice and clearance	Person E	01-11-2026	DCI-2026-004	

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Quality criteria

#	Check	Status
1	A member of senior management has been appointed in writing as head of AI (11, D1.01).	Met · Not met · Not applicable · Pending
2	The AI Committee has an approved written mandate (11, D1.03).	
3	The AI Committee, the AI Office and the board committee are set up with the functions of 01 §8.3 and a calendar compatible with 01 §5.2 (11, D1.07).	
4	The competences match the delegation matrix of 30 §7 without lowering any level.	
5	The quorum requires the second line for G3, G5, risk acceptances and exceptions.	
6	The abstentions and incompatibilities I-6 to I-9 of 30 §5.2 are included.	
7	Every function in 30 §3 and §7 has a single assigned body (section 3).	
8	The annual effectiveness evaluation is provided for (11, D1.12).	
9	No brackets remain unreplaced in the approved text.	

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Approval and verification

Function	SEVEN-G role	Name and position	Date	Signature or reference
Drafts	AI Office with the board secretariat			
Verifies legal fit	Legal counsel			
Verifies risk competences	Second-line coordinator for AI			
Approves the committee rules and annex A	Senior management or board			
Approves annexes B and C	Board			

Segregation of duties: whoever drafts does not approve, and the second line verifies without deciding on its own competences.

11

Version control

Completed document

Version	Date	Author	Changes

Template

Version	Date	Changes
0.1	19-09-2026	First version. Turns the model mandates of 30 §3 and the delegation matrix of 30 §7 into rules of procedure by article, with annexes for the AI Office, the board committee and the appointment of the head of AI.

External sources cited

Links to the official or primary source, checked before publication. Always verify the version in force on the date of use.

Regulation (EU) 2024/1689 of the European Parliament and of the Council of 13 June 2024 laying down harmonised rules on artificial intelligence (Artificial Intelligence Act) · https://eur-lex.europa.eu/eli/reg/2024/1689/oj/eng · Parlamento Europeo y Consejo de la UE · 13-06-2024

European AI Office (European Commission) · https://digital-strategy.ec.europa.eu/en/policies/ai-office · Comisión Europea (DG CONNECT)